

Manitoba Provincial Nominee Program

Farm Investor Pathway Guidelines Kit

June 2022



Manitoba Farm Investor Pathway Guidelines Kit

Manitoba Farm Investor Pathway Guidelines Kit outlines the eligibility requirements and processes for the Farm Investor Pathway (FIP). All of the necessary forms, along with instructions for completing the forms, are included. Please review carefully prior to applying, to determine whether you qualify to be considered for the FIP and to ensure that all necessary documents are submitted.

IMPORTANT

The FIP criteria and forms may change without notice. Visit the FIP section of our website at www.immigratemanitoba.com/immigrate-to-manitoba/mpnp-for-business/fip/ for the most up-to-date information and to ensure you have the most recent version of this document.

Candidates are responsible for the content of all documentation submitted. If material and relevant facts relating to the application have been withheld or misrepresented, the MPNP will not issue a Letter of Advice to Apply and a Nomination Application will be refused.

Be advised that decisions on applications are final. There is no appeal process. However, this does not preclude applicants from beginning the application process anew after one year (or two years for cases of misrepresentation). If the MPNP is unable to nominate you, you are still encouraged to consider other federal immigration streams with Manitoba as your destination.

For FIP and all Business Investor enquiries, contact:

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Manitoba Labour and Immigration
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Introduction

The Manitoba Provincial Nominee Program

The Manitoba Provincial Nominee Program (MPNP) is a provincial immigration program made possible through the *Canada-Manitoba Immigration Agreement*. It allows the Government of Manitoba to nominate immigrants who are best suited to contribute to Manitoba's economy. Applicants nominated by Manitoba should receive favorable consideration from Immigration, Refugees and Citizenship Canada (IRCC) as long as they comply with IRCC's statutory requirements, submit bona fide documents, and have a genuine intention to reside in Manitoba.

This Kit contains information for the Farm Investor Pathway (FIP), which is a niche rural economic initiative under the Business Investor Pathway of the Manitoba Provincial Nominee Program (MPNP). Individuals interested in being a candidate of the FIP will be required to submit an Interest Guidelines Form and a Farm Business Concept. The MPNP will only issue a Letter of Advice to Apply (LAA) to suitable farm business candidates where a long-term contribution to the rural Manitoba economy can be achieved through their nomination. Interested individuals will be required to demonstrate their adaptability, specifically relating to their practical farming skills, technical knowledge and experience in technological based farming practices that are immediately transferrable to rural Manitoba, and that will transfer directly to Manitoba's current primary farm production industry. For information on completing and submitting an Interest Guidelines Form and Farm Business Concept Form, visit www.immigratemanitoba.com/immigrate-to-manitoba/mpnp-for-business/fip/.

Successful Nominees will be required to reside in rural Manitoba with their dependent family members, make an investment into a farm business and assume an active managerial role in that business. Individuals who do not meet all MPNP requirements are encouraged to explore other provincial and federal immigration programs.

FIP candidates that have received a LAA, and subsequently been approved and nominated, does not guarantee the issuance of a Permanent Resident (PR) Visa. IRCC retains the final authority in the issuance of all visas. IRCC will review the file, conduct security and health checks, and may request an interview. Moreover, your nomination may be withdrawn by the MPNP at any time prior to the issuance of a PR Visa. Reasons for the withdrawal of a Nomination Certificate include, but are not limited to:

- The MPNP is no longer satisfied that you meet the requirements under which you were nominated.
- A material and relevant fact related to your application was misrepresented or withheld.
- The MPNP is no longer satisfied that you intend to reside in Manitoba.

The Farm Investor Pathway

The Farm Investor Pathway (FIP) is a niche rural economic initiative under the Business Investor Stream (BIS) of the Manitoba Provincial Nominee Program (MPNP). The FIP is a Direct Nomination economic immigration model specifically for rural Manitoba. The MPNP will only invite suitable farm business candidates to apply where a long-term economic contribution to rural Manitoba can be achieved through their nomination.

MPNP FIP Eligibility Criteria

To be eligible to apply to the FIP, candidates must:

- have a minimum verifiable personal net worth of CAD\$500,000.
- have a minimum of three years farm ownership, as well as experience in managing your farm operation supported by verifiable documents.
- demonstrate adaptability, specifically relating to practical farming skills, technical knowledge and experience in technological based farming practices that will transfer directly to Manitoba's current primary farm production industry.

The MPNP advises you to review and understand the eligibility requirements and the Interest Guidelines and Farm Business Concept submission process carefully.

Interested individuals in the FIP must indicate how they meet the eligibility criteria in addition to outlining their adaptability, specifically relating to their practical farming skills, technical knowledge and experience in technological based farming practices that will transfer directly to Manitoba's current primary farm production industry. Specifically, your existing farm operation must be comparable to current Manitoba farming operations in terms of technology utilization, technological practices employed, scale, equipment utilized, production output, etc.

The MPNP will only issue a Letter of Advice to Apply (LAA) to suitable farm business candidates where a long-term contribution to the rural Manitoba economy can be achieved through their nomination. Although the MPNP does not award points for English or French language capabilities, the MPNP recognizes language capabilities in either of Canada's two official languages are an important adaptability skill that will accelerate your ability to become economically established in rural Manitoba. If you feel that you will be unable to demonstrate your adaptability, specifically relating to your practical farming skills, experience and technical knowledge of technological based farming practices which will transfer directly to Manitoba's current primary production farm industry, you may want to consider reviewing the Entrepreneur Pathway.

The applicant must also:

- conduct a **Farm Business Research Visit** to Manitoba. The applicant must provide a visit report and other documents to demonstrate the research conducted during this visit.
- attend and conduct an interview upon request of a MPNP officer in either of Canada's two official languages.

The applicant must also be prepared to:

- make an Eligible Farm Business Investment (refer Page 11 of this guidelines) in Manitoba; and
- reside in rural Manitoba along with his/her dependent family members.

Note: Meeting the basic eligibility requirements **does not guarantee nomination.**

Ineligible applications

Applications will not be accepted from individuals who:

- have an unresolved refugee claim in Canada;
- are in Canada illegally;
- are subject to a removal order in Canada;
- are prohibited from entering Canada;
- have an application pending with another Provincial Nominee Program in Canada;
- had a prior MPNP or FIP application refused within the last 12 months; or
- had a prior MPNP or FIP application refused for misrepresentation or false documentation within the last 24 months.

Applicants residing in Manitoba while their applications are being processed are responsible for maintaining their legal status in Canada as defined by the Immigration and Refugee Protection Act (IRPA).

Individuals that receive a LAA to apply to the FIP should be aware that they may be ineligible for nomination by the MPNP, if they:

- do not meet the eligibility criteria as determined by the MPNP;
- have committed misrepresentation and/or fraud during the Interest Guidelines and application process;
- have been refused by another provincial or federal immigration program in Canada and the reasons for refusal are applicable to the MPNP;
- have close relatives and/or children residing in other province(s) of Canada;
- are unable to provide sufficient explanation with supporting documentation proving that the acquisition of their earned income and net worth were legally obtained; or
- are unable to demonstrate that they have the necessary resources and skills to operate their intended business.

Applicants may also be ineligible for immigration to Canada, if:

- the applicant or any dependent family member (whether accompanying or not) has a serious medical condition;
- the applicant or any dependent family member (whether accompanying or not) over the age of 18 has a criminal record; or
- the applicant has unresolved custody or child support disputes affecting any member of the family.

Farm Business Experience

Farm Business Ownership / Operation

You must have at least three years of full-time farm business and operational experience in the past five years managing your successful farming operation. Your responsibilities and farm business skills must be described clearly in your Interest Guidelines document submitted to the MPNP (FIP). You must demonstrate adaptability, specifically that your practical farming skills, technical knowledge and experience in technological based farming practices will transfer directly to Manitoba's current primary farm production industry. Specifically, your existing farm operation must be comparable to current Manitoba farming operations in terms of technology utilization, technological practices employed, scale, equipment utilized, production output, etc.

Farm Business Owner / Operator

As a farm business owner / operator, you must be actively engaged and on an ongoing basis in producing primary agriculture products that are marketed for income purposes. As a farm business entrepreneur, you should also bear the risk of return for the capital investment in your farm business enterprise.

Farm Business Research Visit

What is a Farm Business Research Visit?

If you are considering becoming a FIP candidate, you must make a Farm Business Research Visit to Manitoba to investigate farm business and lifestyle opportunities in rural Manitoba.

The Farm Business Research Visit is mandatory for the FIP. The Farm Business Research Visit must be conducted no more than one year prior to submission of an Interest Guidelines and Farm Business Concept to the MPNP (FIP).

You must visit Manitoba for a period of not less than five business days (excluding the days of arrival and departure), to conduct extensive farm business and rural lifestyle-related research. Although a Farm Business Research Visit to Manitoba must be for a minimum of five business days, longer visits are recommended as they provide you with a better opportunity to explore Manitoba.

A Farm Business Research Visit provides you with time to research farming opportunities available, as well as the rural lifestyle in Manitoba. It is expected that you will conduct research activities such as,, but not limited to:

- Collecting necessary information to prepare your Farm Business Concept, which may include farmland costs, crop or livestock cost of production, marketing farm production, farm machinery and equipment, analyzing competition, or investigating customers and farm suppliers.
- Researching information related to moving to and living in rural Manitoba such as schooling for children, recreational activities, services available for newcomers and the general cost of living.

During a Farm Business Research Visit, you must dedicate a significant portion of time conducting farm business-related research and meeting with various stakeholders such as farm business lenders or farm business advisors etc. If you receive a LAA, you will be expected to provide details of your business and lifestyle research through a Farm Business Research Visit Report, which forms part of your Nomination Application.

How to Request and be Approved for a Farm Business Research Visit

It is your responsibility to ensure that you have the necessary travel documents (such as a Visitor's Visa) required for travel to Manitoba, Canada. The MPNP does not provide letters of invitation or support for you to obtain a Visitor's Visa and cannot intervene in cases in which a potential applicant is denied a Temporary Resident Visa.

Submitting a Farm Business Research Visit Report with the Nomination Application

If you received a LAA, you will be required to submit a report of this visit with the Nomination Application. There is no prescribed format for this report; however, you must describe all the activities you have undertaken during this visit. This report must cover the entire period of your stay in Canada starting from the first day of entry to the day of leaving Canada and must also include time spent in other provinces, if any. You should include airline tickets, boarding passes, hotel receipts, business cards and all other relevant details to describe the activities undertaken during the visit. Please do not attach brochures, flyers, maps, pictures, or information booklets collected during the Farm Business Research Visit with this report.

Farm Business Plan

It is expected that successful landed FIP applicants will establish a farm business in rural Manitoba that reflects the province's current farm industry with regard to the type of operation and investment amount that correlates with Manitoba's farming operations in production today. The Province of Manitoba requires that applicants provide details of the farm business / operation which they intend to undertake once they land in Manitoba.

The Summary of Farm Business Plan is required for three reasons:

1. A sound Farm Business Plan is a good indication that the applicant has come up with a plan to operate a farm business in Manitoba that will utilize his/her existing farm business skills and experience. The Business Plan should contain a well-thought out idea to demonstrate that the farm operation being proposed is relevant to the Manitoba farm business industry, is economically viable and that the intended farm operation has a reasonable chance to succeed.
2. To assess whether the intended farm business / operation meets the minimum investment requirements and that the applicant will have an active and ongoing role in the management of the business.
3. To determine the terms and conditions of the Deposit Agreement under which the deposit will be released.

Note: Additional information is included in the General MPNP Process and Policies section of our website at www.immigratemanitoba.com/immigrate-to-manitoba/general-mpnp-policies/.

Guidelines for the Preparation of the Summary of Farm Business Plan

The following is an outline of what the Farm Business Plan should contain:

I. Farm Business Operation

Describe the proposed farm business or farm operation and include:

- Farm operation business structure – proprietorship, limited company, etc.
- Which segment of the agriculture production sector will the proposed farm business operate in? Will the farm operation be focused on crop production, livestock production, mixed farming, apiary, dairy, organic production, poultry, etc.
- Size of scale of the farming operation.
- Identify if you intend to purchase an existing farm operation currently in operation.

II. Personal Details

- Education background
 - Does your education relate to the proposed farm business operation?
- Farming Experience and Adaptability
 - Do you have farm business experience in the proposed business operation?
- Language skills
 - Language proficiency in English or French

III. Critical Factors

- Identify government regulations that will be applicable to the proposed farm business operation such as environmental regulations, manure management regulations, etc.
- Are there special crop / livestock insurance requirements?
- Outline any overall anticipated challenges in addition to those identified above.

IV. Market Analysis

- Marketing
 - What farm marketing efforts will be required to sell the farm production?
 - What marketing channel will be used to sell or market the farm production?

V. Resource Requirements

- Location and distribution
 - What rural area in Manitoba are you proposing for your farming operation?
 - Is the planned farm location close to farm suppliers, farm markets, trucking routes?
- Farm machinery and equipment
 - What type of farm equipment will be required? Is there any special equipment?
- Suppliers
 - Identify farm suppliers that will supply the crop or livestock inputs and services.
- Professional Advisors
 - Do you plan to utilize farm marketing advisors or livestock specialists?

VI. Human Resource Requirements

- Your role

- You must outline your intended role and clearly demonstrate that you will have an active and ongoing day-to-day role in the management of the farm business.

VII. Financial Feasibility and Farm Projections

- Capital requirements
 - How much capital investment will be required to purchase the farmland and begin farm production? Will there be any leased farmland?
 - How much working capital is required to get the farm business started?
- Credit requirements
 - Will financing be required? How much?
 - Source of financing? (Financial institutions? Applicant's Personal Equity?)
- Breakdown of investment
 - List the total amount of investment.
 - List how the investment will be broken down in terms of investment in tangible assets¹.
 - List the amount of personal funds to be invested as well as amount to be financed (borrowed).
- Production Estimate
 - Provide production estimates on your intended primary production including input costs, revenue expectations for sold products, balance sheet and income statement.

Eligible Farm Business Investments

You must make an investment that meets the following criteria:

- You must live on your farm in rural Manitoba on a day-to-day basis;
- The farm must be in active primary agricultural production, must be economically viable and must not be out of production²;
- You must not lease your farm land to others;
- You must manage the farm operation actively on a day-to-day basis. You must not use a third party or farm manager to run the farm; and
- You must not buy a farm for only land value appreciation purposes.

Farm Business Investments will not be eligible if they do not meet these additional requirements for investment and farm business activities.

Investment

The Investment from the Nominee's personal assets should be with no less than \$300,000 in tangible assets¹ in Manitoba.

¹ Tangible assets are items such as farmland, farm buildings, farm related vehicles, office equipment, computers, farm machinery, livestock, tools and fencing supplies, etc.

² Farm businesses that depict the characteristics of a hobby farm will not be eligible for refund.

If an investment is into an existing farm business, the Nominee must control at least 33.33% of the equity, or make a minimum \$1 million equity investment in the farm business. In addition, a redemption option should not be included in terms of investment.

Investment into personal items, such as the principal residence that is located off the farm and motor vehicles for personal use, will not be counted as part of business investment.

Investments into a farm business, operated primarily for the purposes of deriving passive investment income, are not eligible.

Business Activities

A farm business entity should have ongoing and recurring business activities in rural Manitoba.

You are required to actively participate in the management of the farm business on an ongoing basis from within Manitoba.

The farm business must be legal and viable in Manitoba's rural economic environment³, and you should have the necessary resources and skills to operate such a farm business.

The MPNP requires you to conduct value-added farm business activities in rural Manitoba³. Purely speculative activities do not qualify under the MPNP.

Deposits and Deposit Agreements

A main requirement of the MPNP is that successful landed FIP applicants must invest in a farm business in rural Manitoba and undertake an active role in management and operation of the farm operation. To further emphasize this point, a deposit of CAD\$75,000 is required by all approved FIP applicants under the MPNP.

When an applicant has been approved under the MPNP, a letter of approval is sent to the applicant (and consultant or lawyer, if applicable). The letter contains a Deposit Agreement (contract) outlining the requirements of the MPNP and is to be signed and dated by the applicant as well as instructions on how to wire transfer their deposit of CAD\$75,000.

This deposit is refundable upon completion of the requirements of the Deposit Agreement with the MPNP. The funds will be held by the Manitoba Development Corporation (agent for the Province of Manitoba) for a period of two years from the date of landing; giving the applicant adequate time to establish a business. Extensions will be considered on a case-by-case basis and must be approved in advance by the MPNP.

No interest will be paid on the deposit.

Accumulation of Net Worth

Accumulation of Net Worth by Legitimate Sources of Income

In order to meet the MPNP's requirements, your declared net worth must have been legally obtained. You must

³ Farm businesses that are not established or based in rural Manitoba will not be eligible for refund.

demonstrate, through documentation, how your net worth was obtained. This is a very important requirement of the MPNP and you must present sufficient and credible documents to prove that the income and net worth were obtained through lawful means.

The MPNP will assess your accumulated net worth based on the information supplied in Form **Schedule 4A: Economic Classes – Provincial Nominees – Business Nominees** and the supporting documentation provided by you. You must disclose **all assets and liabilities** owned by you, your spouse and your dependent children in this form, **with the exception of personal effects such as jewelry, antiques, paintings, carpets, furniture and automobiles.**

Your personal net worth includes all assets, less any liabilities including mortgages and personal debts. Your net worth may include the following assets:

- cash
- assets in bank accounts
- fixed (term) deposits
- farmland or real property
- investments in bonds, stocks and mutual funds
- investments in other businesses
- pensions and other assets.

Section J of Schedule 4A – Economic Classes – Provincial Nominee – Business Investor Nominees Form:

Section J of this form advises an applicant to submit a narrative document. This narrative document should describe all income earning activities and events of your family. Please provide occupational history and indicate all income that you and your spouse have received from various sources such as:

- All income earned from employment, business or any other profession including salary, bonuses, premiums, commissions, allowances, compensation, dividends, etc., broken down by year
- Capital gain from any investment
- Capital gain from sale of property or business
- Rental income, interest, dividend or other income
- Gift, inheritance or any other compensation received, and
 - a) explain how you have received the income from various sources such as through cash, bank transfer, cheque, etc.
 - b) provide the documents from the objective third party. Self-serving documents prepared by the applicant, relatives or friends are not as credible as documents from third parties, such as governmental authorities and banks.
 - c) follow the Document Check List, particularly items 11, 12 and 13 to enclose the supporting documents to substantiate your accumulation of claimed net worth.

Merely declaring income or inheritance of assets is not sufficient information to convince the MPNP that you have earned such income or acquired assets in the past. You must provide details of your income from all sources, including capital gains, rental income, etc. You must consider all your investments and living expenses when accounting for your accumulated net worth. The MPNP will consider the value of assets, liabilities, income and expenses of your spouse and dependent children. However, the same must be reported when providing the

details of your net worth. All such claims must be supported by sufficient and credible documents. Some of these supporting documents might include copies of bank statements, individual/business tax receipts/returns or any other documents which you feel are appropriate to substantiate this information.

The difficulty of documenting the lawful source of income varies greatly by country. It can be especially difficult in countries where no tax returns are required to be filed, or where full disclosure of revenues and profits on tax returns is the exception rather than the rule. In some cases, individual income tax returns may not reflect the level of income commensurate with the investment being made or net worth being accumulated. Where tax returns show low income or no tax returns are filed, the documentation for source of income should provide overwhelming evidence, through substantial additional documentation, to counter the negative implication that comes from a review of limited financial documentation. The requirement of substantial additional documentation varies from case-to-case and depends on the situation of the particular applicant.

If you have paid very low or no individual income tax, or your bank account does not demonstrate your regularly earned income from your employment, business or profession for the past several years, this can be a reason for the refusal of your application.

If you have purchased real estate, or you have invested in a business or other investments over a period of time, it is necessary to **fully explain** the sources of initial investment into the property, business or other investments. Any records/documentation that can be provided will assist in the review of the application.

Notarized/Certified Document Copies

To have documents notarized/certified, you must take your original documents and a photocopy of each document to a Notary Public⁴ in your community. This authorized individual needs to sign on your photocopies, indicating that these copies are true representations of the original documents, print his/her name, official position, date of certification, contact details and affix his or her official stamp. The MPNP accepts documents certified by a Notary Public⁴ in your country.

Note: The MPNP does not accept copies of documents certified by family members and/or an applicant's immigration representative.

⁴ A Notary Public, also called a Notary, is a public official who verifies that documents are real and/or official.

Interest Guidelines Submission and Nomination Application Process

Before you begin, review FIP Eligibility Criteria to determine if you meet the minimum requirements. Determine that you meet the minimum criteria requirements of the Farm Investor Pathway (FIP): farm business experience, adaptability, official language proficiency and net worth.

Minimum FIP eligibility criteria must be met in order for you to continue to the next step. Please pay close attention to adaptability, specifically relating to your practical farming skills, technical knowledge and experience in technological based farming practices that will transfer directly to Manitoba's current primary farm production industry. Specifically, your existing farm operation must be comparable to current Manitoba farming operations in terms of technology utilization, technological practices employed, scale, equipment utilized, production output, etc.

Interest Process Overview (See FIP Process Overview)

1. Explore and research Farm Business in Manitoba.

Conduct a **Farm Business Research Visit** to Manitoba. Based on your research findings and your self-assessment of the FIP eligibility criteria, you may consider submitting your Interest Guidelines and Farm Business Concept Forms to the FIP.

2. Complete the Interest Guidelines and Farm Business Concept forms.

Use the Interest Guidelines and Farm Business Concept forms to describe how you meet the minimum FIP eligibility criteria.

3. Submit your forms to the MPNP.

Email your completed forms to MPNP-BusinessStream@gov.mb.ca.

The MPNP will screen your Interest Guidelines and Farm Business Concept forms to determine your suitability for the FIP.

If the MPNP determines that a suitability and the potentiality of a long-term economic contribution to rural Manitoba could be achieved, the MPNP will invite you to attend a personal interview with a Business Immigration Officer (BIO). If the MPNP is not satisfied that you are a suitable candidate with the potentiality of a long-term economic contribution to rural Manitoba, feedback will be emailed to you informing you of the reason(s) why you will not advance to the next step.

Receive a Letter of Advice to Apply

If the outcome of the interview with a BIO determines your practical farming skills, technical knowledge and experience in technological based farming practices are immediately transferable to rural Manitoba and that a long-term economic contribution to rural Manitoba can be achieved through your nomination, the MPNP will inform you by an official letter. The official letter will include a Letter of Advice to Apply (LAA) to the FIP. If the

outcome of the interview is not positive, the MPNP will provide you with feedback informing you of the reason(s) why you will not advance to the next steps.

The Interest Guidelines Form and Farm Business Concept are **not an application to the MPNP**. There is no appeal process or reconsideration given if you receive an email indicating that you will not advance to the next stage.

Nomination Application Process Overview

As an applicant, you must make a commitment to reside in rural Manitoba with your dependants, to operate a farm business in rural Manitoba and to assume an active managerial role in that farm business. A MPNP Program Officer must be convinced of an applicant's commitment to live in rural Manitoba and conduct farm primary production in rural Manitoba before recommending nomination.

4. Submit your FIP Nomination Application

If you receive a Letter of Advice to Apply (LAA), you must submit your completed FIP Nomination Application within 120 days from the LAA issuance date. Applications received after 120 days will be returned unprocessed.

Your completed application must include copies of all required documents and the CAD \$2,500 **Application Fees**. The \$2,500 fee must be paid in Canadian Dollars to the Manitoba Development Corporation.

Please note that the MPNP reserves the right to request verification of your net worth and financial information by a Manitoba designated third party service provider. You will be informed in the LAA if the MPNP requires you to submit your net worth and financial information to a third party for net worth verification.

You must be aware that not all individuals who receive a Letter of Advice to Apply will necessarily receive a Nomination Certificate from the MPNP or a Permanent Resident Visa. The Nomination Application will be assessed according to MPNP and FIP criteria. If your Nomination Application or Permanent Resident Visa application is refused, you will not be refunded your application processing fee.

5. Assessment of your FIP Nomination Application

Once a complete FIP Nomination Application has been received, a confirmation letter will be provided. The FIP Nomination Application will be assessed according to FIP and MPNP criteria.

The MPNP will conduct a thorough assessment of your complete application when it is received, including your Farm Business Plan and designated Third Party report (if requested) verifying your net worth and source of funds.

The MPNP will invite you for an interview to discuss your Farm Business Plan and other aspects of your application, as required.

If the assessment identifies concerns with your application, the MPNP will send you a Procedural Fairness Letter (PFL), which you are required to respond to by the specified deadline. If your response does not resolve all the

concerns indicated in the PFL your application will be refused by the MPNP. If your Nomination Application is refused, you will not be refunded your application processing fee.

Complete a Deposit Agreement

If you are approved for nomination, you will be instructed to sign a Deposit Agreement and send a deposit of CAD\$75,000 to the Manitoba Development Corporation.

6. Apply for Permanent Residence

Upon receipt of a signed Deposit Agreement and deposit of CAD \$75,000, you will be instructed to submit your original Permanent Resident application to the Central Intake Office (CIO) in Sydney, Nova Scotia, Canada. The MPNP will send a Nomination Certificate directly to that office indicating that you have been nominated by the MPNP. Upon further screening, the CIO will forward the application to a designated Canadian Visa Office abroad that will provide instructions on medical examinations, security clearances and, upon favourable results, issue the Permanent Residence Visa.

7. Establish your farm business in Manitoba

You are required to report to the MPNP Offices within 30 days of your landing as a Permanent Resident to provide your new contact information to the MPNP (address, telephone, email).

Business Immigration Officers will be available to provide direction for you to acquire further additional farm operational information available from Manitoba government resources, such as [Manitoba Agriculture Offices](#). This will ensure that you are obtaining appropriate and relevant information while you are in the process of establishing your proposed farming operation.

Periodic monitoring will be conducted by the MPNP throughout your farm business establishment period to ensure that the terms and conditions of the Deposit Agreement, including business establishment conditions are being met.

You will be expected to provide periodic progress reports to the MPNP. An applicant must establish his/her farm business and fulfill the investment requirements as outlined in his/her Deposit Agreement within two years of landing. Once the investment in the farm business he/she proposed has been verified, the CAD\$75,000 deposit will be returned to the applicant.

Submitting Your Application

Candidates that have received a LAA to the FIP must:

1. Complete the forms. Please refer to our Form and Document Checklist, which has complete details of the forms and documents required to be enclosed with the application.
2. Collect all documents, as outlined in detail in the Document Checklist. It is an applicant's responsibility to submit all supporting documents. If documents are missing, not translated or unclear, your application may be returned and not assessed. Document translations must be certified.
3. Review and organize your completed forms and supporting documents in the same order as set out in the Document Checklist to ensure you have a complete application package.
4. Please collate your pages and secure them with one paper clip.
 - Do not bind your application or put the pages in a ring binder.
 - Do not enclose individual pages in plastic, envelopes or folders.
 - Do not tie, sew, bolt or glue the pages together.
 - Only staple documents together which have multiple pages.
 - Do not send multiple copies of identical documents.
 - Do not send booklets, brochures or leaflets with your application that were collected during a Farm Business Research Visit.
5. **Photocopy** all your completed forms and supporting documents and attach the labels from the Document Checklist Tag Sheet.
6. Submit your completed application package. (**DO NOT FAX or E-MAIL THE APPLICATION PACKAGE.**)

MAIL TO:

Business Investor Stream
Manitoba Labour and Immigration
7th Floor, 213 Notre Dame Portage Avenue
Winnipeg, Manitoba, Canada R3B 1N3

7. The Nomination Application will be reviewed and you will be contacted by letter, fax or electronic mail (e-mail) with the results. Further clarification and/or documentation may be requested.
8. Decisions on applications are final. There is no appeal process. However, this does not preclude applicants from applying again after one year (or two years for cases of misrepresentation), provided the reasons for refusal of the initial application have been addressed.

If your Application for Nomination is approved by Manitoba, you will be required to make a good-faith cash deposit of CAD\$75,000 to the Government of Manitoba, and sign a Deposit Agreement guaranteeing that you will live in rural Manitoba and start or purchase a farm business in rural Manitoba within two years of obtaining your Permanent Resident status. The deposit will be refunded without interest when the investment described in the Deposit Agreement is made, the farm business is operational and the Nominee is actively involved in the operation of the farm business / operation from within rural Manitoba.

After the deposit of CAD\$75,000 and signed Deposit Agreement are received by Manitoba, you will be provided with instructions on how to submit the appropriate forms, documents and federal processing fees to a Centralized Intake Office – Provincial Nominee Program (PNP) P.O. BOX 1450, Sydney, Nova Scotia, Canada B1P 6K5. www.cic.gc.ca/english/information/offices/canada/sydney.asp

Further instructions will be sent directly to you from the Canadian Visa Office regarding health and security checks. The Canadian Visa Office may require additional documentation at that time. In some cases, you may be required to attend an interview.

Upon arrival in Manitoba, you must contact the MPNP, (Canada 001-204-945-2806), for general settlement support in establishing your farm business. Once the farm operation has been established, you may request the release of your CAD\$75,000 deposit.

At any time during this process, you are encouraged to contact the MPNP for further information or clarification, or to advise on a change in personal situation or contact information.

Application Fees

All FIP nomination applications to the MPNP must include a CAD\$2,500 application processing fee. The processing fee is **non-refundable**, regardless of the outcome of their application. This includes applications withdrawn prior to a decision being made.

At this time, the MPNP can only accept application fee payments by bank draft. We are currently in the process of establishing an online system, which would accept credit card payments; however, this option is not yet available.

Bank drafts must be in Canadian funds, payable to “Manitoba Development Corporation” and attached to the MPNP Fee Payment form. Ensure that your full legal name (Principal Applicant) is included on the front or back of the bank draft. Bank drafts should also be MICR encoded with the account number along the bottom of the draft, which allows the draft to be processed through Canadian financial institutions.

Please note that the MPNP processing fee is separate from the processing and Right of Permanent Resident fees, which will be charged by IRCC when applicants submit their Permanent Resident Visa application.

Note: Applications which do not include the \$2,500 application processing fee **will not be accepted**.

Form and Document Checklist

Instructions

- Please read the instructions carefully and follow the **Form and Document Checklist** in order to comply with the documentation requirements of the MPNP. Non-disclosure or omission of the relevant facts in the application will result in a decline of your application. If your application is not accompanied by the required documents and forms, or the enclosed documents are not legible, your application will be rejected for non-compliance of MPNP requirements and your application fee of \$2,500 will not be refunded.
- Submit **originals, photocopies or notarized photocopies** of all applicable application forms and documents **as indicated below**. Translations must be provided for any documents in languages other than English or French and must be certified and/or notarized. All forms require original signatures in ink and must be signed with the same signature as it appears on the applicant's passport.
- If you are unable to submit any of the documents listed in the **Form and Document Checklist**, please submit an explanation and/or alternative documents. You may also submit any additional documents (not listed in the **Form and Document Checklist**) if you think it will help you to establish your credentials to qualify for the MPNP.
- In the 'Remarks' column of the **Form and Document Checklist** you must record:
 - S for Submitted,
 - NS for Not Submitted, or
 - NA for Not Applicable/Available.
- The MPNP reserves the right to request originals or any additional documents as required to better assess your application.
- For all documents issued by a third party in support of your credentials, you must provide the contact information such as mailing address, telephone, fax numbers and e-mail address of the person/organization certifying your credentials. For example: Auditor's contact information with audited Financial Statement, Property Appraiser's contact information with property Valuation Report, or Bank contact information with bank statements etc.
- **Schedule 4A – Economic Classes – Provincial Nominee – Business Nominees** Form has several sections to list your assets and liabilities. Sections A, B, C, E, F, and G are for the disclosure of the principal applicant's **personal assets** and liabilities. **Do not include business assets** in these sections. Business assets must be listed in Section D of this form. The MPNP considers the current book value shown in the financial statements of the business as its current market value. You must disclose all assets and liabilities owned by you, your spouse and your dependent children in this form, **with the exception of personal effects such as jewelry, antiques, paintings, carpets, furniture and automobiles**.
- **Important: Section J of Schedule 4A – Economic Classes – Provincial Nominee – Business Nominees** Form: Section J of this form advises an applicant to submit a narrative document. This narrative document should describe all income earning activities and events of your family. Please provide occupational history and indicate the total net income that you and your spouse have received, as well as the business and family investments and loans that you made during a given period. Please provide details for the last **twelve years** grouped together in four-year periods. Sign and staple this narrative

document with the Schedule 4A form. Please refer to the Sources of Funds section for further information.

- If your spouse is a contributor to your family income and net worth, he or she must fill out his or her own narrative document. **You must provide his or her Curriculum Vitae (or Resume) and documents supporting his or her income from employment, business or other profession.**
- In the case of multiple properties, businesses, or other assets/liabilities, please put all documents specific to that item of the principal applicant's net worth together in the order of the Document Checklist. For example, if the principal applicant has two properties, include the title deed, property evaluation report, purchase agreement, and all other required documents relevant to each property together.

Warning: You must provide sufficient credible documents in support of your farm business (or) farm management experience and how you meet the FIP eligibility requirements. If you fail to provide credible documentation in support of your farm business and/or management experience and how meet the FIP eligibility requirements, your application may be refused.

- Staple together documents that have multiple pages.
- Assemble your documents in the order listed in the Document Checklist. Use this Checklist to verify that you have all the required documents.
- You should keep a photocopy of your complete application along with documentation for your future reference.

Part I - MPNP Application Forms and Documents

If you receive a **Letter of Advice to Apply** to the MPNP Farm Investor Pathway, submit these forms by email to MPNP-BusinessStream@gov.mb.ca.

Forms are available at www.immigratemanitoba.com/immigrate-to-manitoba/mpnp-for-business/fip/. Please check to ensure you are using the most recently updated form version.

Item No.	Document Details	Remarks
1.	Application Forms	
A	Manitoba Provincial Nominee Program Fee Payment Form • Completed and signed by the Principal Applicant	
B	Manitoba Provincial Nominee Program Generic Application Form – FIP (MPNP APP) • Completed by the principal applicant ONLY. Ensure that: • appropriate questions are answered in full; and • the form is signed by the principal applicant.	

Item No.	Document Details	Remarks
	Note: Attach additional pages where necessary.	
C	Manitoba Information Release Form (MREL) Completed and signed by the principal applicant and applicant's spouse.	
D	Manitoba Consent to Indirect Collection and Disclosure of Personal Information Completed and signed by the principal applicant and applicant's spouse.	
E	Manitoba Code of Conduct for Immigration Representatives Who Represent Applicants to MPNP Completed by the principal applicant and his or her representative.	
	Declaration of Intent To be completed by the principal applicant	
2.	Proof and Report on Farm Business Research Visit to Manitoba	
	If you have conducted a visit to Manitoba, submit these documents:	
A	A complete Trip Activity Log – Provide an overlook/itinerary of your daily activities during your stay in Manitoba. Please do not send us pictures and brochures.	
B	An itinerary of your visit including copies of air ticket and boarding passes for all inward and outward flights to and within Canada	
C	Proof of stay in Manitoba	
D	A description of the relevant research you conducted in Manitoba	
3.	Summary of Farm Business Plan in Manitoba	
A	Submit details of your intended farm business operation.	

Part II - Government of Canada Forms

If you receive a **Letter of Advice to Apply** to the MPNP Business Entrepreneur Pathway, submit these forms by email to MPNP-BusinessStream@gov.mb.ca.

Additional Instructions:

- **Schedule 4A** – Economic Classes – Provincial Nominee - Business Nominees Form has several sections to list your assets and liabilities. Section A, B, C, E, F, and G are for the disclosure of the principal applicant's **personal assets** and liabilities. **Do not include business assets** in these sections. Business assets must be listed in Section D of this form. The MPNP will only consider the current book value of the business shown in the audited financial statements in the calculation of your total personal net worth. You must disclose all assets and liabilities owned by you, your spouse and your dependent children in this form, **with the exception of personal effects such as jewellery, antiques, paintings, carpets, furniture and automobiles**.
- **Important: Section J of Schedule 4A** – Economic Classes – Provincial Nominee - Business Nominees Form: Section J of this form advises an applicant to submit a narrative document. This narrative document should describe all income earning activities and events of your family. Please provide occupational history and indicate the total net income that you and your spouse have received and the business and family investments and loans that you made during a given period. Please provide details for the last **twelve years**. Sign and include this narrative document with Schedule 4A form. Please refer to Sources of Funds section for further information.
- If your spouse is a contributor to your family income and net worth, he or she must fill out his or her own narrative document.

Item No.	Document Details	Remarks
4.	You are required to submit the following Federal Government forms with your Farm Investor Stream application	
IMM 0008	Generic Application Form for Canada	
IMM 5669	Schedule A - Background/Declaration	

Item No.	Document Details	Remarks
IMM 5406	Additional Family Information	
IMM 0008_4A	Schedule 4A: Economic Classes: Provincial Nominees - Business Nominees Please note that applicants must submit a narrative document bearing their signature and describing how their present financial resources, both family and business, were accumulated. Please see Section J of Schedule 4A for more details	
IMM 0008_4	Schedule 4: Economic Classes: Provincial Nominees	
IMM 5562	Supplementary Information – Your Travels	

Part III – Other Required Documents

Please submit Original, Photocopies or Notarized Photocopies as indicated for Items 5 to 13.

Item No.	Document Details	Remarks
5.	Identity / Marriage Information	
	Submit photocopies of:	
A	All appropriate birth, marriage, divorce, proof of separation, and/or death certificates for yourself and your spouse;	
B	National Identity Card/Certificate or Cedula (where applicable).	
6.	Children's Information	
	Submit photocopies of:	
A	- Each child's birth certificate (which includes the names of his/her parents) - Adoption papers - Proof of custody for children under the age of 19	
B	If your child/children resided and/or studied in Manitoba, please include: Proofs of school registration and Manitoba residence, attendance reports, study permit and guardianship documents, if applicable.	
7.	Passport / Travel Documents	
	IMPORTANT: Do not send original passports.	
A	Submit photocopies of Passports that are valid for at least one year for yourself, your spouse, and your dependent children. Note: Children must each have their own Passport, separate from their parents. - Submit photocopies of all pages of Passport - Submit a photocopy of your visa for the country in which you currently reside (if you reside in a different country than your nationality) Note: Nationals of the People's Republic of China should note that Public Affairs Passports are NOT valid for immigration to Canada.	

Item No.	Document Details	Remarks
8.	Education and Language Proficiency Information	
	Submit photocopies of:	
A	Degrees, diplomas or certificates for both the principal applicant and the spouse that relate to agriculture training. Language assessment records, if applicable.	
B	Study permit and degrees, diplomas or certificates from Canadian educational institution for the principal applicant and spouse, if applicable	
C	Language Proficiency Test Results for both the principal applicant and/or spouse, if applicable. More information about language tests can be found at www.immigratemanitoba.com/immigrate-to-manitoba/general-mpnp-policies/language-proficiency/	
9.	Proof of Connection to Manitoba and Canada	
	If you have close relatives in Manitoba, submit photocopies of:	
A	Documents showing relationship such as birth or marriage certificates of the close relative in Canada (showing the names of common parents).	
B	Provide the following for your close relatives in Canada (if applicable): i. Canadian Passport ii. Permanent Residence Card iii. Health Card	
	If you or your spouse have travelled, studied and/or worked in Manitoba in the past, submit photocopies of:	
C	Visitor, study and/or work permits issued to you or spouse and any other relevant information about your past stays in Manitoba	
D	Letter of reference from employer in Manitoba, if applicable, for applicant or spouse.	
E	T4 or Notice of Assessment from CRA if applicable	

Item No.	Document Details	Remarks
10.	Documents Pertaining to Previous Immigration Applications	
	Submit photocopies of:	
A	Decision letters regarding the outcome of past applications (approval, refusal, withdrawal)	
B	All correspondence received from relevant Immigration Program, including letters, e-mails, and/or any other communication.	
11.	Documents Supporting Farm Business Ownership Experience (applicable for all past or present farm business experiences)	
	Submit photocopies of:	
A	Curriculum vitae (or resume); summarizing your farm business experience and chronology of your farm operation, farm management experience and educational qualifications, if applicable.	
	Submit Notarized photocopies of:	
B	Business licenses or business registration certificates, if applicable..	
C	Articles of Association, Incorporation or Partnership Agreements, if applicable.	
D	Financial Statements prepared by Certified / Chartered / Public / Professional Accountant (as recognized by the law in your country of residence) for the last two years. The MPNP only accepts the financial information / statements submitted by your farm business to the government authorities	
E	Farm Business Income Tax Returns submitted to government tax agencies for the last three years.	
F	Payroll records for a period of the most recent two years of principal applicant's current business submitted to tax or other Government office.	

Item No.	Document Details	Remarks
12.	Personal Net Worth Statement Or Financial Information The MPNP reserves the right to request verification of your net worth and financial information by a Manitoba-designated third-party service provider.	
A	Your LAA will indicate if the MPNP requires you to submit your net worth and financial information to a third-party for verification. If required, submit a complete report issued by one of Manitoba's designated third-party verifiers. More information about designated third-parties can be found at the bottom of this page www.immigratemanitoba.com/immigrate-to-manitoba/mpnp-for-business/ .	
	Submit Notarized photocopies of:	
B	Personal / Farm business income tax certificates/returns for the last three years.	
C	Personal credit report for applicant and spouse, if applicable, issued by credit agency of your country.	
D	All Bank Statements for the bank accounts owned by principal applicant and spouse for the last two years.	
E	Fixed Deposit Certificates.	
F	Property and farm property ownership documents such as land titles, along with property valuation reports prepared by certified appraisers.	
G	Surrender value certificate for pension plans and insurance policies issued by plan administrator or insurance company.	
H	Stock ownership statements from depository or bank.	
I	Mortgage or other loan outstanding statements from bank or financial institution.	
J	Supporting documents for other investments, assets and liabilities.	
14.	MPNP Letter of Advice to Apply (LAA)	
A	Submit your original MPNP LAA	

Frequently Asked Questions

General

Q. What is the Farm Investor Pathway within the MPNP?

A. The Manitoba Provincial Nominee Program (MPNP) is a component of an immigration program that was created through an agreement between the Government of Canada and the Province of Manitoba. The FIP is a niche rural economic initiative under the Business Investor Stream of the MPNP. The MPNP will only issue a LAA to suitable farm business candidates where a long-term contribution to the rural Manitoba economy can be achieved through their nomination. The purpose of this Pathway is to attract suitable farm business persons that meet the criteria of the FIP.

Q. What is the minimum net worth requirement for the FIP?

A. FIP candidates are required to have a legally earned or obtained net worth of at least CAD\$500,000.

Q. What amount does the MPNP require me to invest in Manitoba in the FIP Program?

A. The amount of investment you make in Manitoba will be dictated by the type of farm operation you establish, the size of the operation, and the farm sector that you intend to enter. Depending on the size of the farm, the investment may be in the hundreds of thousands or millions of dollars. While the total investment may include financing, a minimum of \$300,000 must be from your personal resources. The CAD\$75,000 deposit is not part of the investment.

Q. Must I make a Farm Business Research Visit to Manitoba?

A. Yes. Farm Business Research Visits are mandatory for a minimum of five business days. This visit will allow you to identify and assess potential farming opportunities as well as experience rural Manitoba's quality of life.

Q. If I conduct a Farm Business Research Visit and if I am interviewed, will I automatically receive a LAA to the FIP?

A. Making a Farm Business Research Visit to Manitoba and being interviewed will not guarantee that you will receive a LAA. The MPNP bases its decision to issue LAAs on many factors in addition to the minimum net worth and experience criteria.

Eligibility

Q. Why does the FIP eligibility criteria specify that an applicant must demonstrate practical farming skills, technological knowledge and experience in technological-based farming practice that will immediately transfer directly to Manitoba's current primary production industry? Why does the eligibility criteria request that your existing farm operation must be comparable to current Manitoba farming operations in terms of technology utilization, technological practices employed, scale, equipment utilized, production output, etc?

A. In the past, applicants who successfully established rural farm businesses, consistent with existing Manitoba farm operations and investment levels, displayed the characteristics of having farming skills, technical knowledge and experience in technological based farming practices, as well as language skills that were immediately adaptable or transferable to Manitoba. The technical knowledge and experience in technological based farming practices that were being employed by the successful applicant in their existing farm business and their existing farm operation, was comparable to current Manitoba farming operations in terms of technology utilization, technological practices employed, scale, equipment utilized, and production output.

Applicants with farming as their business intention who previously did not employ similar technological based farming practices on their farm operation, or operate a farm operation comparable to a Manitoba farm operation or have suitable language skills, were less likely to be successful in establishing a farm business in rural Manitoba.

Q. I have never owned a farm business or managed a farming operation. Does this affect my chances of qualifying?

A. Yes. All FIP applicants must be able to demonstrate that they have a minimum of three years of farm ownership and operational management experience supported by verifiable documents. You must demonstrate your adaptability, specifically your practical farming skills, technical knowledge and experience in technological based farming practices which will transfer directly to Manitoba's primary farm production industry that is currently in practice.

Q. I operate a farm where the farm technologies, production practices, amount of investment, climate and / or government requirements are considerably different than Manitoba, but I am a hard worker, produce similar crops such as wheat and cattle, and I adapt easily to new business situations. Do I have a reasonable chance of being approved under the FIP?

A. The MPNP will only issue a LAA to suitable farm business candidates where a long-term contribution to the rural Manitoba economy can be achieved through their nomination. Interested individuals will be required to demonstrate their adaptability, specifically relating to their practical farming skills, technical knowledge and experience in technological based farming practices are immediately transferable to rural Manitoba, and that will transfer directly to Manitoba's current primary farm production industry.

The MPNP recognizes that the FIP Program will not be a suitable program for all potential farm business candidates. Candidates who do not meet the eligibility criteria of the FIP are encouraged to review the MPNP Entrepreneur Pathway, the MPNP Skilled Worker Program, or immigration programs offered by Immigration, Refugees and Citizenship Canada with Manitoba as their destination.

Q. I am not required to file income tax assessments or income tax returns on income that was earned through farming. Will this affect my chance of being a successful FIP applicant?

A. All FIP applicants must be able to demonstrate that they have a minimum of three years of farm business management or farm ownership and operation experience supported by verifiable documents. The MPNP requires all applicants to document their accumulation of funds as per IMM0008 Schedule 4a. Without official government documents to support declared income from farming operations as requested in the Document Checklist, the MPNP may not be able to accurately assess that you will meet the MPNP and Immigration, Refugees and Citizenship Canada's source of funds requirements.

Q. I do not understand English or French. Will this affect my chances of receiving a LAA?

A. The inability to speak English or French will negatively impact your chances of being issued a LAA to the FIP. Although the FIP does not employ an adaptability matrix that awards points for English or French language capabilities, the FIP recognizes that language capabilities in either of Canada's two official languages are an important adaptability skill which can accelerate your ability to become economically established in rural Manitoba. FIP candidates must demonstrate suitability and adaptability to the Manitoba farm industry, which is rural based and services are offered predominantly in English or French.

Interest Guidelines and Farm Business Concept Process

Q. What is an Interest Guidelines and Farm Business Concept?

A. Individuals interested in being a candidate for the FIP can review the FIP Overview and may consider submitting an Interest Guidelines Self-Assessment Form and a Farm Business Concept. The MPNP will screen your Interest Guidelines and Farm Business Concept to determine your suitability for the FIP.

Q. What happens if the MPNP determines that I am a suitable candidate for the FIP?

A. If the MPNP determines a suitability, with the potential of achieving a long-term economic contribution to rural Manitoba, the MPNP will invite you to attend a personal interview with a Business Immigration Officer (BIO). If the outcome of the interview with a BIO determines your practical farming skills, technical knowledge and experience in technological based farming practices are immediately transferable to rural Manitoba, and that a long-term economic contribution to rural Manitoba can be achieved through your nomination, the MPNP will inform you officially with a Letter of Advice to Apply (LAA).

Q. What happens if the MPNP is not satisfied that I am a suitable candidate for the FIP?

- A.** If the MPNP is not satisfied that you are a suitable candidate, with the potential of achieving a long-term economic contribution to rural Manitoba, feedback will be emailed to you informing you of the reason(s) why you will not advance to the next step. If you were invited for an interview at this stage and the outcome of the interview is not positive, the MPNP will provide you with feedback informing you of the reason(s) why you will not advance to the next steps.
-

Q. If I receive an email from the MPNP informing me that I will not proceed to the next steps, or that I will not receive a LAA, can I appeal this email?

- A.** The Interest Guidelines Form and Farm Business Concept is NOT an application to the MPNP. There is no appeal process or reconsideration given if you receive an email indicating that you will not advance to the next stage.
-

Application Process

Q. If I receive a LAA, apply to the FIP with a nomination application and, if I am approved, will I be guaranteed a Permanent Resident Visa to come to Canada?

- A.** In addition to meeting the requirements of the MPNP, an applicant must also meet the requirements of the Federal Government's Department of Immigration, Refugees and Citizenship Canada.
-

Q. Do I need to hire a lawyer, consultant, or representative to help me complete or advise me on the FIP Process?

- A.** The MPNP does not require you to hire a lawyer, consultant or representative to assist you with your application. In some cases (for example, if you have difficulty understanding the forms) you may wish to hire someone to help you fill out the forms or give advice. However, if you hire someone, your application will not receive special attention, or be handled differently from other applications.
-

Q. If my nomination application is approved by the FIP, what is my next step?

- A.** If your nomination application is approved by the FIP, you will receive instructions to sign a Deposit Agreement and send a deposit of CAD\$75,000 to the Manitoba Development Corporation.

Upon receipt of the signed Deposit Agreement and the CAD\$75,000 Deposit, a Certificate of Nomination will be issued in your name (and your eligible dependents, if applicable). You will receive a letter from the MPNP, which will provide detailed instructions to forward your Federal Immigration forms and Federal processing fees to the appropriate Centralized Intake Office of Immigration, Refugees, and Citizenship Canada.

Q. How long will it take for me to receive my Nomination Certificate and what are the factors that may delay processing my application?

A. There are several factors that can delay processing of your application. These may include, but are not limited to:

- delay on your part in returning a signed Deposit Agreement and making the deposit payment;
 - the need for an interview with a MPNP officer;
 - incorrectly completed or unsigned application forms and/or missing documents; unclear photocopies;
 - documents not accompanied by a certified English or French translation;
 - failure to provide an accurate mailing address or change of address; and
 - verification of information and documents provided or a change in family situation.
-

Q. If I have already applied for immigration under a Federal Government Program, or under any other Provincial Nominee program, can I still be considered as a FIP candidate?

A. You can be considered as a FIP candidate under the MPNP only if your other application was filed through a Federal Government Immigration Program and if that application is still waiting for a decision. If you already have a pending immigration application with any of the other provinces of Canada, the MPNP will not consider you as a FIP candidate, will not issue a LAA and will not issue a nomination certificate.

Q. Who do I contact after I arrive in Manitoba?

A. It is important that you contact the MPNP located on the 7th Floor, 213 Notre Dame Avenue, Winnipeg, Manitoba, telephone: 204-945-2806, to arrange an appointment. You will be required to bring your landing papers with you at that time. The MPNP provides information, advice and guidance to Nominees of the MPNP in preparing for and going through the establishment of their proposed farm operation.

Q. Can I start to dispose of my assets after I become nominated by Manitoba and before getting my Permanent Resident Visa?

A. Do not dispose of any assets until Immigration, Refugees and Citizenship Canada has provided you with a Permanent Resident Visa.

Q. Can I still be considered as a FIP candidate if I have been refused under an immigration program of another province?

A. Yes; however, you will be required to advise the MPNP if an immigration application has been made previously to another Provincial or Federal immigration program. You are required to advise the MPNP of the results of that application including copies of any correspondence such as a letter of refusal. The submission should contain sufficient information to allow the MPNP to evaluate why the factors for refusal in the other Provincial or Federal programs do not apply to the application to Manitoba.

FIP Business Investment and Deposit Refund

Q. What kind of farm businesses will not be considered?

A. Please refer to the Eligible Farm Business Investment (refer page 11) this Farm Investor Pathway Guidelines.

Q. Why is a Deposit Agreement required?

A. If your Application for Nomination is approved by Manitoba, you will be required to make a CAD \$75,000 deposit to the Manitoba Development Corporation (an agent for the Government of Manitoba), guaranteeing that you will live in Manitoba and start or purchase a farm business in Manitoba. The deposit will be refunded to you when the investment described in your Deposit Agreement is made, your business is operational and you are living in Manitoba. The Deposit Agreement ensures that the applicant understands the commitment to Manitoba.

Q. When is the CAD\$75,000 Deposit released?

A. You have two years from the date of landing to fulfill the requirements of the Deposit Agreement. Once you have met the terms and conditions specified in your Deposit Agreement, your CAD\$75,000 deposit will be returned to you in full, without interest. Deposits are released to you only at your current address, or may be wired to your account upon request. Any changes to the Deposit Agreement must be discussed and approved by the MPNP Business Consulting Unit before proceeding with any other business.

Q. May I change my plans for my business venture after I arrive in Manitoba?

A. The Farm Investor Pathway is a rural economic initiative under the MPNP. It is expected that, if you are approved under the FIP, you will invest in and establish a farm operation in rural Manitoba. You are instructed to contact the MPNP for any business related circumstances regarding your Deposit Agreement.

Q. What if I need more time than the two years after landing to establish my business?

A. An extension may be granted depending on your circumstances and what kinds of activities you had undertaken within the two-year period. Extensions are not automatically granted unless requested for with an adequate explanation as to why the extension should be granted. Any such requests should be directed to the MPNP in writing, no less than 30 days prior to the anniversary of the two-year period.

Q. What if I am unable to proceed with my farm business venture in Manitoba?

A. If the intended farm business does not go ahead or is not undertaken, your CAD\$75,000 deposit may be retained by the Government of Manitoba.

Q. Does the MPNP assist Nominees to identify specific farm business opportunities in Manitoba?

A. As a government entity, the MPNP does not endorse or advertise directly or indirectly any farm business opportunities. The MPNP does not have a list of farms for sale. However, the MPNP will provide you with the necessary information and knowledge that will allow you to undertake independent research for farm business opportunities in Manitoba. Manitoba has a very diverse agriculture economy with opportunities in a variety of farm business sectors. We encourage you to conduct as much research as possible to identify opportunities across the broad spectrum of farm businesses operating in the Manitoba economy.

Q. When do I deposit the CAD\$75,000?

After your Nomination Application has been approved, you will be given detailed instructions, including bank information, to make a deposit of the CAD\$75,000 to the Manitoba Development Corporation, an agent of the Government of Manitoba.

Procedural Fairness

Q. If I receive a PFL and respond, will my application be automatically approved?

A. The PFL provides you with a fair opportunity to satisfy the concerns raised by the assessing officer. The response you provide must satisfy all of the MPNP's concerns raised in the PFL. Subsequently, the application will be assessed taking your response into consideration, but this does not guarantee that your application will be approved.

Q. What happens to my application if I do not provide a response to a PFL within the specified period?

A. If you do not respond to the PFL within the specified time frame, your application will be assessed based on the information currently available. If the MPNP's concerns outlined in the PFL remain outstanding, your application may be recommended for refusal.

Q. If my application is refused, can I appeal the decision?

A. All decisions are final. There is no appeal process to the MPNP after a decision has been rendered. The MPNP has implemented the Procedural Fairness Policy to allow you to address concerns prior to the MPNP making a final decision.

Q. If my application is refused after I have received and responded to a PFL, can I submit additional information for reconsideration after the decision?

A. No further consideration will be given to an application after the decision date. Any information submitted to the MPNP regarding a declined application will be returned.

Q. If my application was refused, can I re-start the process?

A. Yes. You may re-start the process beginning at the Interest Guidelines and Farm Business Concept stage after a period of one year from the date on the refusal letter.

Q. If my application has been refused due to the identification of falsified documents, misrepresentation or concealment of material facts can I re-start the process?

A. Yes. However, you will not be eligible to begin at the Interest Guidelines and Farm Business Concept stage for two years from the date of the decline letter. You must start the interest process by beginning at the Interest Guidelines and Farm Business Concept stage. Candidates who wish to re-start the process must also adhere to all steps and processes.

Q. If I withdraw my application from the MPNP before the issuance of a PFL, can I re-start the process?

A. You may re-start the process beginning at the Interest Guidelines and Farm Business Concept stage after a period of one year from the date on the refusal letter. You must start the interest process by beginning at the Interest Guidelines and Farm Business Concept stage. Candidates who wish to re-start the process must also adhere to all steps and processes.

Q. If I receive a PFL and withdraw my application from the MPNP without responding to the PFL, can I re-start the process?

A. You will receive a decision letter from the MPNP even though you have decided to withdraw your application. You may re-start the process beginning at the Interest Guidelines and Farm Business Concept stage after a period of one year from the date on the letter acknowledging withdrawal. You must start the interest process by beginning at the Interest Guidelines and Farm Business Concept stage. Candidates who wish to re-start the process must also adhere to all steps and processes.

Note: Do not sell or dispose of your personal possessions and business assets until you have official confirmation from Immigration, Refugees and Citizenship Canada that you will receive a permanent resident visa.

MPNP General Processes and Policies

Information on general MPNP processes and policy is available at www.immigratemanitoba.com/immigrate-to-manitoba/general-mpnp-policies/. Some of this information is included below for your convenience.

Procedural Fairness

The Procedural Fairness Process allows an applicant a fair opportunity to respond to the MPNP's concerns prior to a negative decision being made on his/her FIP nomination application.

In cases in which the assessing officer would normally recommend an application for decline due to insufficient information, or concerns that the applicant does not meet all of the MPNP's requirements, a procedural fairness letter will be sent to the applicant and his/her authorized representative (if applicable). The procedural fairness letter will outline the officer's concerns and allow the applicant or his/her representative up to 30 days to respond to the content of the letter. This time period allows the applicant a fair opportunity to respond to the concerns outlined in the procedural fairness letter.

After the specified period has expired, the officer will complete his/her assessment of the application and make a recommendation. The recommendation will be reviewed by at least one other officer before the decision is finalized. This multi-step process involving multiple officers of the MPNP ensures that each application is assessed fairly.

Nomination and Withdrawal of Nomination

After receiving the nomination, the applicant (now a MPNP Nominee) is responsible for completing and submitting a complete Application for Permanent Residence to the appropriate office of IRCC. This must be done within 180 days from the date of nomination.

A nomination may be withdrawn at any time prior to IRCC issuing you a Permanent Resident Visa if the MPNP is not satisfied that you continue to meet the original requirements under which you were nominated. Reasons for which the MPNP may withdraw a nomination include, but are not limited to:

- The MPNP is advised that information provided in your visa application is false or has been misrepresented.
- You are deemed to not intend to live, work, and/or start a farm business in Manitoba.

Apply for Permanent Residency

After you are nominated by the MPNP, follow the instructions on this page to correctly apply for your Canadian Permanent Resident Visa.

MPNP applicants are nominated only upon receiving an approval letter in their name from the MPNP

The MPNP approval letter is an official government document. Make copies, for your personal records and for you to submit the letter as a (required) document with your Visa Application to Immigration, Refugees, and Citizenship Canada (IRCC).

Visa Application steps are detailed at Immigration, Refugees and Citizenship Canada (IRCC) website: [Apply for Permanent Residence: Provincial Nominees](#).

By applying to IRCC for Permanent Resident (PR) status as a Manitoba nominee, you are obliged to establish a farming operation, reside, and settle in rural Manitoba; Manitoba reserves the right to withdraw your nomination at any time before you become a permanent resident of Canada.

Watch: [IRCC application tutorial shows you how to complete your application forms correctly and avoid common errors that cause delays](#).

Specific steps for Manitoba Provincial Nominees

- You must include a copy of your MPNP approval letter in your PR Visa Application.
- Follow all directions in your approval letter, paying particular attention to the date. Your nomination is valid for six months.
- You must submit to IRCC your Visa Application, complete with [IRCC fees](#), before your nomination expires; if you do not, IRCC will not accept your application.
- During the visa process you must notify both IRCC and the [MPNP](#) of addresses or family changes.
- Nominees currently working in Manitoba: do not let your Work Permit expire; follow instructions below.
- Once you receive from IRCC your Permanent Resident status, you must notify the [MPNP](#).

What to expect after applying to IRCC's Centralized Intake Office (CIO)

If the CIO accepts your application as complete, they will send you a file number and tell you your next steps, including which Canadian Visa Office will process your application.

Status updates: Use your file number to [check online](#) your application status. (Do not contact the MPNP. Authority for, and information about visa applications, rests solely with IRCC.)

The Visa Office processing your application will advise you when you and your dependents must get a [medical exam](#) and obtain a [police certificate](#). (Wait for IRCC instructions because, for example, your doctor cannot provide this service).

What to do while waiting for visa processing

Be sure to re-visit the MPNP website to take advantage of [resources](#) to help you settle in your community or, if you are overseas, to prepare yourself to move and successfully find a job and adjust to life upon arrival in Manitoba.

- **If you are working in Manitoba:** Do not let your Work Permit expire. Be prepared to apply for another Permit or for an extension while your PR application is being processed. The same applies to nominees living here on visitor, student and other permits. Report any employment changes to the [MPNP](#); for example: layoff or changing employers.
- **If you are overseas:** Do not arrange to move (or quit your job, etc.) until after IRCC officially informs you of receiving Canadian Permanent Resident status.

What to do while waiting for visa processing

The Visa Office will contact you and ask you to send your passport. The Visa Office will return it to you at the address you provided, with a Canadian Permanent Resident Visa stamp.

When you enter Canada, you will be given a Record of Landing (similar to your MPNP approval letter.) This is an important document as you will need it to apply later for your [Permanent Resident Card](#).

Note: You are advised to keep a copy of your MPNP application. You will be required to submit the same information provided in your MPNP application to IRCC when completing your Permanent Residence Visa application. However, in cases in which the information has changed substantially from the time of the Nomination Application and Application for Permanent Residence, you must provide a copy of the relevant changes to the MPNP. If you fail to advise the MPNP of the changes to your information, the MPNP reserves the right to withdraw the nomination.

Eligible Dependants

Your family is included in your application when you seek Canadian Permanent Resident status through the MPNP.

Manitoba values the contribution that families make to our communities and to the economic development of our province, and encourages the immigration of families who intend to establish themselves as permanent residents of Manitoba.

Because the MPNP is an economic immigration program that selects skilled workers needed in the local labour market, you and your spouse, if applicable, should look carefully at MPNP eligibility criteria and decide who is the better applicant (the other person will then be listed as the applicant's spouse).

While the MPNP assesses only the principal applicant's qualifications, MPNP Online also asks you to enter information about the qualifications of your spouse; this is because your spouse is eligible to work and will receive personalized employment and settlement services the government makes available to all New Manitobans.

Who is included in your MPNP application?

You must provide information, and identity documents, for **all** members of your immediate family, including those who will not accompany you to Canada.

WHO ARE ELIGIBLE ACCOMPANYING DEPENDANTS?

Your spouse (by marriage or by common-law partnership of at least one year) and your dependent children may move with you to Manitoba to settle as permanent residents.

Effective October 24, 2017, children qualify as dependants if they meet both of these requirements:

- they're under 22 years old, and
- they don't have a spouse or common-law partner.

Children 22 years old or older (also known as an overage dependent children) qualify as dependants if they meet both of these requirements:

- they have depended on their parents for financial support since before the age of 22, and
- they are unable to financially support themselves because of a mental or physical condition.

For more details, please see the Immigration, Refugees and Citizenship Canada (IRCC) website for the [current and previous definitions of a dependent child](#).

Use the [IRCC online tool](#) to check if your child qualifies as a dependant.

Fiancé(e)

A fiancé(e) is not a dependent for purposes of immigration. If your fiancé(e) intends to accompany you to Manitoba and you are not getting married before you apply to the MPNP, they will need to complete a separate MPNP application and qualify as a skilled worker applicant.

Changes in family status

You must report changes in family status (ex: you have a baby or a death in the family or an eligible accompanying dependant becomes ineligible by getting married, etc.). You must inform both the MPNP and the Government of Canada (Visa Office) of changes to family status **before** you and your dependants are issued Permanent Resident Visas. If you fail to promptly declare new dependents, and they do not undergo medical examinations that are required in the Permanent Resident Visa process, you may not be able to sponsor them in the future.

Declare all dependants

All existing dependants must be declared to the MPNP before you are nominated (Eligible dependants indicated in your application as not accompanying you to Canada will later require a separate application for immigration/sponsorship).

Ineligible family members

Relatives such as your parents or siblings cannot be included in your MPNP application even if they live with you. As a permanent resident, you may be able to sponsor such relatives, but the MPNP cannot assist with sponsorship applications.

FIP Language Proficiency

The FIP does not employ an Expression of Interest (EOI) points grid that awards points for English or French language capabilities. However, the FIP recognizes that language capabilities in either of Canada's two official languages are an important adaptability skill, which can accelerate your ability to become economically established in rural Manitoba. FIP applicants must demonstrate suitability and adaptability to the Manitoba farm industry, which is rural-based, and services are offered predominantly in English or French. Candidates

without sufficient capability to communicate in either English or French will negatively impact their chances of being invited to apply to the FIP.

Immigration Representatives

For the purposes of the Manitoba Provincial Nominee Program (MPNP), an immigration representative is someone you pay and authorize to represent, advise, consult or look into the status of your MPNP application.

A representative can be a lawyer or consultant you hire to prepare your MPNP application. The MPNP has no official immigration representatives acting on its behalf and does not endorse or require the services of an immigration representative or recruiter. Using an immigration representative will not give your application special attention or guarantee it will be approved.

Any applicant or employer who uses the services of an immigration representative or recruiter does so at his or her own risk. Applicants are responsible to check that representatives they choose are ethical and competent to work on their behalf and authorized according to the provisions of the [MPNP Code of Conduct](#).

If you use the services of an immigration representative or recruiter in connection with an Interest Guidelines or application to the MPNP, they must be registered with our office and provide the MPNP with their complete name and contact information. Failure to declare an immigration representative or recruiter may result in the refusal of your MPNP application.

Manitoba will only recognize or release information to a paid immigration representative who is:

- a lawyer who is a member in good standing of a Canadian provincial or territorial law society; or
- a notary who is a member in good standing of the Chambre des notaires du Quebec; or
- an immigration consultant licensed by the College of Immigration and Citizenship Consultants (CICC)

Note: All immigration representatives must provide a signed Code of Conduct if they submit an Interest Guidelines on your behalf. All applicants must agree to the MPNP Code of Conduct as part of an MPNP application, whether or not they have a paid immigration representative. The MPNP reserves the right to not accept an application if it determines that the representative or applicant has not complied with the terms specified in the Code of Conduct.

The MPNP is not responsible for the resolution of any disputes arising between applicants and their immigration representative. Applicants may remove a named representative from their application at any time by providing a request in writing to the MPNP. Applicants must remove an existing representative before changing to a new representative.

The MPNP will disclose information to **only one** designated representative for each application. For purposes of assessing an application, the MPNP will communicate directly with the applicant whenever necessary.

To find out more about immigration representatives, visit these websites:

- [Immigration, Refugees, and Citizenship Canada](#)

- [Law Society of Manitoba](#)
- [College of Immigration and Citizenship Consultants](#)

Commitment to Settle in Manitoba

When assessing whether you and your family members meet the retention requirement of the MPNP, the Immigration Officer will take a number of factors into consideration, such as:

- You or your spouse have close relatives living in other province(s) in Canada.
- You or your spouse have lived in another province in Canada.
- You or your spouse have spent considerable time in another province in Canada.
- Your child was or is studying in another province in Canada.
- You have visited Canada in the past and your destinations during these visits were outside Manitoba.
- You have an active or recent immigration application with a destination to another province.
- You or your spouse have worked and/or studied in another province in Canada.
- You have assets in another province in Canada.
- Your child was born in another province in Canada.
- You and your family members are strongly connected with other provinces in Canada.

This list is not exhaustive and there may be other situations that can reflect a lack of your commitment to settle in Manitoba along with your family members.

It is possible for you to address the retention concern of the MPNP. For example, if a child is studying in another province, you might consider moving this child to an educational facility in Manitoba to demonstrate a commitment to the province, or you may encourage your close relatives to settle in Manitoba. It is up to you to convince the MPNP of your sincerity to live and reside in Manitoba and not in another province where relatives currently live.

Merely reiterating your commitment to settle in Manitoba is not enough to address the retention concern of the MPNP, and you are advised not to submit your application if you think the MPNP will not be convinced of your intention to settle in Manitoba.

Truthful and Correct Information

As the principal applicant, you are responsible for the accuracy and reliability of the documents and information submitted with a Nomination Application to the MPNP and for any information or documents provided on your behalf by a person who you authorize. The MPNP may consult third parties to verify the veracity of the documents submitted.

A false declaration, fraudulent document or concealment of information could result in:

- the rejection of an application;
- the withdrawal of a nomination;
- the refusal to examine any other application from that applicant for a period of two years; and, if applicable,
- the exclusion from Canada and/or become grounds for prosecution or removal.

If, at any time during the submission of an Interest Guidelines , the application process, nomination stage or submission of Application for Permanent Residence, it is found that you have misrepresented facts, supplied fraudulent documents or concealed relevant information from the MPNP, the MPNP reserves the right to not issue a LAA, refuse the nomination application or withdraw the nomination (if issued).

Routine checks are conducted with issuing authorities, home government departments and other reliable sources to verify whether information provided and documents submitted are genuine.

There is no excuse or justification for misrepresentation. If a required document is not available, you should attach a written explanation when submitting your application and, if possible, provide other documents or information that might substantiate the issue in question.

Misrepresentation or withholding material facts relating to your Application for Permanent Residence in Canada is a criminal offence.

Information Change Requests and Information Accuracy

The MPNP relies, although not exclusively, upon the information provided in the application and, if undertaken by the MPNP, the interview of the applicant. Additionally, the MPNP undertakes its own due diligence with respect to prospective nominees, which may include conducting investigations to verify the accuracy of applicant-provided information. The MPNP has the obligation and authority to determine suitability for nomination and to investigate applicants and the information provided in the application, as well as any communications concerning the application, made either directly by the applicant or by the applicant's representative.

Every candidate and or applicant is expected to be honest, open and forthright in his/her interactions with the MPNP. This includes the submission of the nomination application, and also includes the relevant documentation that is provided in support of that application. Applicants are required to ensure that their application is complete and accurate when it is submitted, and should not expect to rely on having to correct errors or omissions later on in the evaluation process.

Applicants are expected to disclose to the MPNP any updates in personal or financial circumstances that might alter, in a material way, information that they have already submitted. Any such updated information or documentation must be accompanied by an explanation from the applicant, indicating the nature of and reasons for the update.

If the MPNP determines that a submitted information update is particularly onerous (for example, if it substantially alters the content of the application), then it may set back the timeline for assessment of the application or require the applicant to withdraw his/her application altogether and reapply. Decisions regarding the effect of new or updated applicant-provided information are strictly at the discretion of the MPNP.

You should be aware that any information provided to the MPNP, after the application has been submitted may affect the decision being made. The MPNP has the discretion to render its decision based on the totality of information submitted, including having reference to the original application, as well as any new or updated information submitted, the circumstances of such submission, and also having reference to any information

obtained through the MPNP's own due diligence. Each MPNP decision will be determined on a case-by-case basis, and the outcome in any one case should not be taken as a guarantee of a particular result in any other case.

You are ultimately responsible for any and all information that you submit, or that is submitted on your behalf. Material misrepresentation of a relevant fact on an application may be grounds for refusal or revocation of a Nomination Certificate. If the MPNP becomes aware of, or discovers discrepancies, such as false submissions, omissions, etc. of a relevant and material nature in an application or other applicant-provided information, the application may be declined, even when such misrepresentations are made by your representative.

If new information is submitted after the application has been assessed, that information will not be accepted. If a request is made for an interview or a meeting with MPNP staff to discuss new information, that request will be declined. All communications concerning an application under assessment must be made in writing and sent to the MPNP, either by e-mail or postal mail.

Change in Contact Information

You are encouraged to provide an up-to-date personal e-mail address and contact details that can be used to communicate with the MPNP. Your e-mail address is very important to the MPNP. Please write this in clear and legible letters. The MPNP will communicate with you or your representative (if any) in a timely and efficient manner, preferably through e-mails. If you do not provide an e-mail address, please be advised that processing time will increase due to the time required for mail services. Changes in contact details must be provided to the MPNP immediately. You should expect a longer processing time if this information is not communicated to the MPNP in a timely manner. It is your responsibility to ensure that the information in the application is up-to-date.

Document Translation

The MPNP requires that all documentation be provided in either English or French. When documents are in a language other than English or French, the applicant must submit a notarized photocopy of the original document (as required in the Document Checklist), as well as a copy of its translation.

The MPNP will accept translated documents by a certified English/French translator or any person (with the necessary translation ability) other than the principal applicant's spouse, a member of the principal applicant's family, or a paid third party (immigration representative) that has assisted and prepared the application to the MPNP.

A Translator Affidavit must be provided. A Translator Affidavit describes the translation ability of the translator. It is a document that recognizes the translator has sworn, in the presence of a person authorized to administer oaths in the country in which the translator is living, that the contents of his/her translation are a true translation and representation of the contents of the original document. In this affidavit, the translator must provide his/her complete contact details including name, address, phone, fax number and e-mail address, as well as start date and termination date of authorization, if applicable.

Important Terms

A-B

Affidavit – A sworn statement in writing. It is a written promise that this is the principal applicant's statement.

Accompanying Dependents – A spouse and/or a dependent child (see below for definition of Dependent Children) of the principal applicant who intends to immigrate to Manitoba with the principal applicant.

Application – A package including all forms, supporting documents and information provided to the MPNP to request consideration by the MPNP.

Balance Sheet (Statement of Financial Position) – One of the most important pieces of financial information, prepared by a business/company. It is a snapshot that shows what a business owns (Assets) and owes (Liabilities) at that point in time. The difference between the Assets and the Liabilities is the owner's equity.

(Statement of) Business Plan – A Business Plan is a plan summarizing the applicant's intended business venture. This should include enough information to outline the most important details of the applicant's business idea, how it will be run and broad expectations of outcomes.

Business Immigrant – A person who has the intention, relevant business experience, and ability to establish, purchase or make a substantial investment in a business in Manitoba that will contribute significantly to the provincial economy and job creation. The business immigrant must also intend to live in Manitoba and have the ability to provide active and ongoing participation in the management of the business.

Business Owner – As an entrepreneur, you must be engaged actively and on an ongoing basis in providing goods or services to customers. Also, as an entrepreneur, you should bear the risk of return for the capital investment in your business enterprise.

C

Canadian Visa Office – Immigration, Refugees and Citizenship Canada (IRCC) immigration office outside Canada, located at a Canadian Embassy, Canadian Consulate General, or Canadian High Commission that issues Temporary Resident Visas and Permanent Residence Visas.

Cash Deposit – A deposit made and payable to the Government of Manitoba. This deposit will be held until the agreed investment has been made. Terms governing release of the deposit are found in the Cash Deposit Agreement. The amount of the deposit for the Farm Investor Pathway is (CAD 75,000). There is no deposit required under the Entrepreneur Pathway and the Skilled Worker Pathways.

Note: No deposit is required until after the application has been assessed and approved, and no interest will be paid on the deposit.

Cash Deposit Agreement – The agreement entered into between the applicant and the Government of Manitoba governing the terms and conditions under which the deposit will be held and subsequently released.

Cash-Flow Statement (also known as Statement of Changes in Financial Position) – A Cash Flow Statement traces the flow of funds (or working capital) into and out of a business during an accounting period. It may be used to assess the timing, amount and predictability of future cash flows and it can be used as the basis for budgeting. There are three sections to a Cash Flow Statement: operating activities; investing activities; and financing activities. Cash flow is not the same as net income.

Certificate of Nomination – A Certificate issued by the MPNP directly to an IRCC Visa Office indicating that an approved Provincial Nominee is eligible to apply to that office for a Permanent Resident visa.

Common-law partner – A common-law partner is a person who has been living with the principal applicant in a conjugal relationship for at least one year. The term refers to both opposite and same-sex relationships.

D-J

Dependent Children – In order to be considered eligible to accompany an MPNP applicant to Manitoba, a dependent child must be:

- under the age of 22 and not married or in a common-law relationship, or
- 22 years of age or older, dependent substantially on the financial support of the parent since before the age of 22 and unable to be financially self-supporting due to a physical or mental condition

Please note the following:

- All existing dependants must be declared to the MPNP BEFORE nomination.
- New dependants, after nomination, must be declared to the MPNP and the Government of Canada Visa Office BEFORE Permanent Residence Visas are issued.
- If you do not declare a new dependent to the MPNP and the Government of Canada BEFORE your Permanent Residence Visa is issued, you will need to apply separately to sponsor these dependents through a Government of Canada sponsorship program AFTER you settle in Manitoba.
- The MPNP cannot assist you with a sponsorship application.
- Please note also that IRCC may introduce regulatory changes to amend or change the definition of a “dependant”. In that eventuality, the newly introduced definition of a “dependant” will prevail.

Deposit Agreement – After an application is approved for nomination, the applicant must sign a contract with the Government of Manitoba, which details the terms and conditions under which the applicant’s deposit will be held and subsequently released. The Deposit Agreement will specify the applicant’s intended level of investment and type of business proposed.

Designated Representative – An individual, not necessarily a paid immigration representative, named by the applicant and authorized to receive information regarding an application. The MPNP will only release information to **one** named and authorized representative.

Equity Investment (Capital cash outlay) – This consists of investment in verifiable assets and working capital. It is the amount of money, in Canadian Dollars, which is to be invested in an existing business in Manitoba, or the start-up of a new business. In the case of an incorporated business, this investment can take the form of Share Capital (Common or Ordinary Shares, Preferred Shares or Subordinated Shareholder Loans to the company).

NOTE: This is an investment in permanent capital and, as such, there can be no fixed redemption date). The investment can also take the form of capital outlay for a facility or land that will be used for the purposes of operating the proposed business. There can be no other claims on this money, except that of the entrepreneur.

ESDC – Employment and Social Development Canada.

Exploratory Visit – A visit that gives the MPNP applicant information relevant to their MPNP application. Exploratory visits differ under the MPNP streams.

For the Farm Investor Pathway, it is a visit that gives the prospective farm business applicant an opportunity to acquire first-hand knowledge about living and operating a farm business in Manitoba. The visit may include farm market analysis/research, in-person meetings with farm related industries and government departments or agencies, and other important considerations in establishing a farm business.

Financial Statements – Documentation including balance sheets, income statements and cash flow statements that are audited or reviewed by independent accredited accountants. See individual definitions in this section for details on each of these items.

H-L

Immigration Representative – An individual who has the applicant's permission to conduct business for him/her with IRCC. A paid representative must be either a lawyer registered with a Canadian Provincial Law Society or a consultant who is registered with the College of Immigration and Citizenship Consultants (CICC) or the Chamber des notaries du Quebec.

Paid Representative – An individual who licensed by the College of Immigration and Citizenship Consultants (CICC), a Canadian Provincial Law Society or the Chamber des notaries du Quebec who acts on behalf of the applicant applying for immigration under the MPNP. Only members of these associations are authorized to charge fees for immigration advice and/or services under the MPNP. If using the services of a paid representative, the applicant must confirm that the representative is a member in good standing of at least one of these three professional associations. For more information, please read IRCC's tips for choosing an immigration representative.

Income Statement – An indicator of a company's financial performance, which measures sales or revenues and expenses over a specified time period, usually one year.

IRCC – Immigration, Refugees and Citizenship Canada.

IRCC Visa Office – An Immigration, Refugees and Citizenship Canada office at a Canadian Embassy, High Commission or Consulate that issues visas, including Permanent Resident Visas.

M-R

Manitoba Provincial Nominee – A person whose application to immigrate to Manitoba has been approved and to whom the MPNP has issued a Certificate of Nomination.

Manitoba Provincial Nominee Program (MPNP) – A nomination program that allows the Province of Manitoba to assess and nominate applicants for immigration who can demonstrate their ability to establish successfully and permanently in Manitoba.

Manitoba Provincial Nominee Program (MPNP) Applicant – A person who has been nominated in accordance with Manitoba's criteria for the Business Entrepreneur and Farm Investor Pathway. This person will be assisted in applying for a Permanent Resident Visa through a designated Canadian Visa Office under the category of Provincial Nominee.

Net Income – The amount of money a business has made over a specified period of time (usually one year). This is generally calculated as revenue less expenses and income (corporation) tax. It is calculated before dividends to shareholders or drawings to proprietors or partners.

Net Worth – The value of an applicant's total assets, less the value of his or her total liabilities. This includes all the assets owned by the applicant's spouse and dependent children but does not include value of personal items such as jewelry, furniture, appliances or vehicles etc.

Nominate – The term used by the Province of Manitoba to describe the selection of an applicant by the MPNP and to recommend an applicant for issuance of a Permanent Residence Visa by IRCC.

Notary Public – (also called a Notary). This is a public official who verifies that documents are real and/or official.

Permanent Resident – A person who is legally in Canada as a landed immigrant, but who is not yet eligible to apply for, or has not yet been granted Canadian citizenship.

Personal Net Worth – An indication of the financial background and strength of the principal applicant and spouse, which is calculated as the difference of assets (things **owned**) minus liabilities (things **owed**). It does not include value of personal items such as jewelry, furniture, appliances, etc.

Principal Applicant – The person (you or your spouse) who has a better chance of meeting the selection criteria for the MPNP as an entrepreneur.

S-Z

Senior Farm Management Experience – You have occupied a position in the highest level of the management and operation structure of a major farm business. In that position, you were responsible for the overall operations of the farm business, and have done so for at least three of the past five years prior to applying. You must demonstrate adaptability, specifically that your practical farming skills, technical knowledge and experience in technological based farming practices will transfer directly to Manitoba's primary farm production industry.

If your application is based on Senior Farm Management experience, you must demonstrate that you have had a role with significant farm operation responsibilities involving the following aspects of the farm operation:

- Overall crop or livestock production including managing and physically participating in day-to-day farm operations relating to crop and livestock production.
- Sales and marketing of primary agriculture products.
- Custom farm operation contracting.
- Financial management and accounting.
- Human Resources/Personnel management, if applicable.

In addition to the above, you should also demonstrate that your level of income is commensurate with the prevailing income level of senior farm managers of other major businesses in your country. You must clearly demonstrate this level of income through appropriate documentation including government income tax assessments or tax paid and or income tax returns.

Spouse – A person to whom the principal applicant is legally married. The term refers to both opposite- and same-sex relationships.

Supporting Documentation – The documents required for all immigration applications (e.g. documents that prove identity, work experience, language ability, finances, etc.).

Temporary Work Permit – A permit issued by an IRCC Visa Office or Case Processing Centre allowing the holder to work temporarily in Canada according to the conditions indicated on the permit.